

25PSCV01095 25PSCV01095

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-08-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CIT%2C6%2C08%2F10%2F2026

Source SHA-256: 155ebca07297737aad9da5f185aa808c39c256cff6ab06d1ffe2d87e87a19949

Case Number: 25PSCV01095 Hearing Date: August 10, 2026 Dept: 6

CASE NAME: Marcos Manuel Gomez Ramirez v. Brian Xavier Marquez, et al.

Petitioner Marcos Manuel Gomez Ramirez's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING

The Court GRANTS Petitioner Marcos Manuel Gomez Ramirez's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability. The Court will sign the proposed orders.

Petitioner is ordered to provide notice of the Court's ruling and file proof of service of same within five days of the Court's order.

BACKGROUND

This is an auto accident case. On March 26, 2025, plaintiff Marcos Manuel Gomez Ramirez (Plaintiff/Petitioner), filed this action against defendants Brian Xavier Marquez, Utiliquest, LLC (collectively, Defendants), and Does 1 to 50, alleging causes of action for motor vehicle and general negligence.

On June 22, 2026, Petitioner filed a petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with disability on behalf of Petitioner's child, Claimant Joan Gomez (Claimant).

LEGAL STANDARD

Court approval is required for all settlements of a minor's claim or that of a person lacking the capacity to make decisions. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337.) "[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Superior Court* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court Rules 7.950, 7.951, and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all

information that has "any bearing upon the reasonableness" of the compromise or the covenant. (Cal. Rules of Court, rule 7.950.) The person compromising the claim on behalf of the person who lacks capacity, and the represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) An order for deposit of funds of a minor or person lacking decision-making capacity and a petition for the withdrawal of such funds must comply with California Rules of Court Rules 7.953 and 7.954. (Cal. Rules of Court, rule 3.1384; see also Super. Ct. L.A. County, Local Rules, rules 4.115-4.118.)

DISCUSSION

Form MC-350 (Rev. January 1, 2021)

Petitioner verified the petition on a fully completed mandatory Judicial Council Form MC-350, using the current January 1, 2021 revision. (Cal. Rules of Court, rule 7.950.)

Settlement

Claimant has agreed to settle this action against Defendants in exchange for \$110,000.00, \$77,742.43 of which will go to Claimant. If approved, \$27,500.00 will be paid in attorney fees, \$575.33 will be paid for reimbursement of litigation costs advanced by Claimant's attorneys, and \$4,182.24 will be paid for medical expenses, leaving a balance of \$77,742.43 for Claimant, to be deposited into insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the Court.

The Court has reviewed the proposed settlement and finds the petition contains a full disclosure of all information that has any bearing upon the reasonableness of the settlement amount to Claimant.

Attorney Fees

Petitioner disclosed the retained attorney's information per Rule 7.951 of the California Rules of Court. (Petition, ¶ 17, subd. (b), Attach. 17a; Cal. Rules of Court, rule 7.951.) There is an agreement for services provided in connection with the underlying claim, a copy of which Petitioner submitted per Rule 7.951, subdivision (6), of the California Rules of Court. (Petition, Attach. 17a; Cal. Rules of Court, rule 7.951, subd. (6).)

Petitioner's counsel seeks to recover \$27,500.0 in attorney fees. (Petition, ¶ 13, subd. (a), Attach. 13a.) Petitioner's counsel provided a declaration addressing the reasonableness of the fee request per Rule 7.995, subdivision (c), of the California Rules of Court, accounting for the factors specified in Rule 7.955, subdivision (b). (Petition, Attach. 13a; Cal. Rules of Court, rule 7.955, subds. (b)-(c).) Rule 7.955, subdivision (b), provides as follows:

(b) Factors the court may consider in determining a reasonable attorney's fee. In determining a reasonable attorney's fee, the court may consider the following nonexclusive factors:

- (1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.
- (2) The amount of the fee in proportion to the value of the services performed.
- (3) The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.

(4) The amount involved and the results obtained.

(5) The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.

(6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.

(7) The experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8) The time and labor required.

(9) The informed consent of the representative of the minor or person with a disability to the fee.

(10) The relative sophistication of the attorney and the representative of the minor or person with a disability.

(11) The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12) Whether the fee is fixed, hourly, or contingent.

(13) If the fee is contingent:

(A) The risk of loss borne by the attorney;

(B) The amount of costs advanced by the attorney; and

(C) The delay in payment of fees and reimbursement of costs paid by the attorney.

(14) Statutory requirements for representation agreements applicable to particular cases or claims.

(Cal. Rules of Court, rule 7.955, subd. (b).) The Court addresses these factors below.

Amount of Fee in Proportion to Value of Services Performed

Petitioner's counsel contends the amount of the fee is in proportion to the value of services performed. (Petition, Attach. 13a.)

Novelty and Difficulty

Petitioner's counsel does not address this factor. (Petition, Attach. 13a.)

Amount Involved and Results Obtained

Petitioner's counsel seeks \$27,500.00, i.e., 25% of the settlement. (Petition, Attach. 13a.)

Nature and Length of Professional Relationship

Petitioner's counsel indicates having formed a professional relationship with Petitioner and having spoken with Petitioner and Claimant multiple times over the past year. (Petition, Attach. 13a.)

Experience, Reputation, and Ability of Counsel

Petitioner's counsel indicates having practiced for approximately 16 years, having gained an adequate reputation as an attorney, and having gained the ability to perform the legal service rendered. (Petition, Attach. 13a.)

Time and Labor Required

Petitioner's counsel does not address this factor. (Petition, Attach. 13a.)

Acceptance of Case Precluding Other Employment

Petitioner's counsel does not address this factor. (Petition, Attach. 13a.)

Contingency Fee

Petitioner's counsel seeks a contingency fee of 25%. (Petition, Attach. 13a.)

"California Rules of Court, rule 7.955 requires a trial court, in determining reasonable attorney fees, to balance an attorney's interest in fair compensation with the protection of the interests of a minor client. Thus, a trial court 'must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made.' [Citation.]" (Schulz v. Jeppesen Sanderson, Inc. (2018) 27 Cal.App.5th 1167, 1176-1177, italics in original.)

The Court finds that Petitioner's counsel has adequately demonstrated the reasonableness of the fee award in light of the factors and circumstances in this case.

Medical Bills

Claimant has incurred \$28,257.31 in medical expenses, but lien claimants have agreed to reduce their claims to \$4,182.24. (Petition, ¶ 12, subd. (a).)

Costs

Petitioner's counsel seeks to recover \$575.33 in costs advanced. (Petition, ¶ 13, subd. (b).)

Amount to Be Paid to Claimant

The net amount to be paid to Claimant is \$77,742.23. (Petition, ¶ 15.)

Disposition of Balance of Proceeds

Petitioner requests that the net proceeds be deposited into insured accounts in one or more financial institutions in this state, i.e., Bank of America, subject to withdrawal only on authorization of the Court. (Petition, ¶ 18, subd. (b)(2).)

Prognosis

Claimant has recovered from the underlying injuries. (Petition, ¶ 8, subd. (a).)

Court Appearance

California Rule of Court 7.952, subdivision (a), requires attendance by the petitioner and claimant unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) The Court finds that the appearance of Claimant is not required due to Claimant's status as a minor. Petitioner must still appear for the hearing.

Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (MC-351) & Order to Deposit Funds in Blocked Account (MC-355)

Petitioner filed a proposed order for approving the petition (Form MC-351) and a proposed order to deposit funds in a blocked account (Form MC-355). Petitioner failed to provide the judicial officer information in paragraph 1, subdivision (c), of Form MC-351, and to provide the hearing information in paragraph 1 of Form MC-355. (Form MC-351, ¶ 1, subd. (c); Form MC-355, ¶ 1.) The Court can complete these items.

Based on the foregoing, the Court GRANTS the Petition.

CONCLUSION

The Court GRANTS Petitioner Marcos Manuel Gomez Ramirez's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability. The Court will sign the proposed orders.

Petitioner is ordered to provide notice of the Court's ruling and file proof of service of same within five days of the Court's order.